Non-Disclosure Agreement (NDA)

This Agreement is made and entered into as of 17-01-2025, by and between:

1. Sculpt Your Image

Address: 2101, Spaces, Western Heights, Andheri 400053
(hereinafter referred to as the "**Disclosing Party**")

2. E-Karigar

Address: 3706, Hill Road, Ambala Cantt, Haryana - 133001
(hereinafter referred to as the "**Receiving Party**")

WHEREAS:

1. The Disclosing Party is the rightful owner of various applications, web-based tools, libraries, and associated code (hereinafter referred to as the "Proprietary Information").
2. The Receiving Party has agreed to receive and utilize the Proprietary Information solely for the purposes of developing, maintaining, or supporting the Disclosing Party's organization.
3. The Receiving Party acknowledges that the Proprietary Information is highly confidential and agrees to maintain its confidentiality in accordance with the terms of this Agreement.

NOW, THEREFORE, the Parties agree as follows:

1. Ownership and Rights

1.1 The Disclosing Party retains 100% ownership and rights to all applications, web-based tools, libraries, and code created for their organization.
1.2 The Receiving Party shall not disclose, distribute, or share the Proprietary Information with any other organization, individual, or entity, whether in the same or a different domain/industry. 1.3 The Receiving Party shall not use the Proprietary Information for any other future or past clients, whether associated with the Disclosing Party or not.

2. Confidentiality Obligations

2.1 The Receiving Party agrees to:

- Treat all Proprietary Information as strictly confidential.
- Use the Proprietary Information solely for the agreed-upon purposes under this Agreement.

- Restrict access to the Proprietary Information to employees or contractors who require it for the purpose of fulfilling their duties and who are bound by confidentiality obligations no less stringent than those set forth herein.

2.2 The Receiving Party shall immediately notify the Disclosing Party in writing of any unauthorized use or disclosure of Proprietary Information.

3. Exclusions from Confidential Information

The obligations of confidentiality shall not apply to information that: (a) Was in the public domain at the time of disclosure; (b) Becomes part of the public domain through no fault of the Receiving Party; (c) Is disclosed to the Receiving Party by a third party legally entitled to make such a disclosure.

4. Term and Termination

4.1 This Agreement shall commence on the date first written above and shall remain in effect indefinitely unless terminated by mutual written agreement. 4.2 Upon termination of the business relationship or at the Disclosing Party's request, the Receiving Party shall return or destroy all Proprietary Information and provide written certification of such return or destruction.

5. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of India.

6. Remedies

The Receiving Party acknowledges that any breach of this Agreement may cause irreparable harm to the Disclosing Party, for which monetary damages may be inadequate. The Disclosing Party shall be entitled to seek injunctive relief in the event of a breach of this Agreement, in addition to any other remedies available at law or in equity.

7. Entire Agreement

This Agreement constitutes the entire understanding between the Parties and supersedes all prior agreements, understandings, or representations, whether oral or written, relating to the subject matter hereof.

8. Amendment

This Agreement may be amended or modified only by a written agreement signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

For Sculpt Your Image:
Name :
Title :
Date : _____

For E-Karigar:
Name : Gaurav Mathur
Title : CEO & Founder
Date : 17-Jan-2025